25901176 **A**

Reg.No : .....

Name : .....

MAHATMA GANDHI UNIVERSITY, KOTTAYAM

MGU-UGP (HONOURS) REGULAR EXAMINATION March 2026

Fourth SEMESTER

Value Addition Course (VAC) - MG4VACCOM200 - INTELLECTUAL PROPERTY RIGHTS

(2024 ADMISSION ONWARDS)

Duration: 1 Hour **Maximum Marks: 50**

Remember(K), Understand(U), Apply(A), Analyse(An), Evaluate(E), Create(C), Skill(S), Interest(I) and Appreciation(Ap)

Students should attempt at least one question from each course outcome to enhance their overall outcome attainability.

Part A

MCQ Questions

Answer any **20** questions

Each question carries **1** marks

1. Trademarks protect: [U] / [CO1]

   a). Inventions b). Business secrets

   c). Brand names and logos d). Scientific theories

2. A business chooses trade secret protection instead of patent protection mainly because [U] / [CO3]

   a). It wants limited protection b). It prefers public disclosure

   c). It wants to avoid disclosure of technical details d). It requires registration fees

3. Assigning a foreign company's trademark to its Indian subsidiary so that the subsidiary becomes the legal owner and operates locally is an example of: [U] / [CO4]

   a). Licensing arrangement
   b). Strategic alliance
   c). Cross-border IPR assignment
   d). Franchise agreement

4. A startup uses its patent portfolio to secure funding from investors. This demonstrates [U] / [CO3]

   a). Legal monopoly
   b). Public domain use
   c). Industrial exclusion
   d). Attracting investment

5. A major challenge to IPR in the digital age is: [U] / [CO5]

   a). Slow innovation
   b). Easy online copying and global distribution
   c). Limited access to technology
   d). High employee turnover

6. The TRIPS principle of "Most-Favored-Nation (MFN) Treatment" means [U] / [CO1, CO2]

   a). Any advantage granted to nationals of one country must be extended to nationals of all other WTO members
   b). You must treat your own citizens better than foreigners
   c). Patents must be granted to the most famous inventors first
   d). Developing nations do not have to follow IPR laws

7. A competitor using a deceptively similar brand name may amount to [U] / [CO3]

   a). Patent infringement
   b). Copyright piracy
   c). Trademark infringement
   d). Trade secret protection

8. Monetizing intellectual assets mainly refers to: [U] / [CO4]

   a). Converting intellectual property into revenue
   b). Hiding intellectual property
   c). Limiting market access
   d). Avoiding innovation

9. Coca-Cola has trademark protection for the unique contour shape of its bottle.This is protected as a [U] / [CO3]

a). Word mark b). Device mark

c). Shape mark d). Sound mark

10. Royalty rate benchmarking involves: [U] / [CO4]

a). Using market royalty data to estimate arm's-length rates for similar IP b). Fixing statutory royalty rates

c). Ignoring comparable transactions d). Estimating labour productivity

11. One of the importance of IPR is: [U] / [CO1]

a). Encouraging piracy b). Promoting innovation

c). Reducing competition d). Eliminating creativity

12. T-Series uses the ℗ symbol on music albums.The ℗ symbol protects [U] / [CO3]

a). The lyrics only b). The logo

c). The sound recording d). The brand name

13. Which of the following is a key feature of IPR licensing? [U] / [CO4]

a). Permanent transfer of rights b). Time-bound agreement

c). Free use without conditions d). Automatic ownership change

14. Moral rights of an author mainly protect [U] / [CO3]

a). Commercial profits b). Reputation and authorship credit

c). Industrial use d). Patent rights

15. Which of the following BEST shows a balance between IPR protection and fair competition? [U] / [CO5]

a). Blocking all competitors permanently b). Giving licences on fair and reasonable terms

c). Refusing to share any technology d). Expanding monopoly power

16. Value generation through IPR means: [U] / [CO2]

a). Free use of ideas
b). Destroying competitors
c). Avoiding legal rights
d). Creating income from intellectual assets

17. What is the economic value of a trade secret? [U] / [CO3]

a). It is protected through statutory registration
b). It provides advantage due to limited public access
c). It is disclosed after a fixed period
d). It is enforceable by government authority

18. Which of the following licenses is common in software and creative works? [U] / [CO4]

a). Compulsory license
b). Open license
c). Sole license
d). Statutory license

19. A minor modification that any skilled technician can easily make fails the test of [U] / [CO3]

a). Novelty
b). Inventive step
c). Industrial application
d). Disclosure

20. WIPO's historical roots lie in which 19th-century treaties? [U] / [CO1, CO2]

a). TRIPS and GATT
b). Paris Convention and Berne Convention
c). Madrid Agreement and Hague Agreement
d). WTO Agreement

21. Reputation-based competitive advantage is strongly linked with: [U] / [CO2]

a). Trade secrets
b). Patents
c). Trademarks
d). Industrial designs

22. Which of the following strengthens protection of creative works internationally? [U] / [CO3]

a). TRIPS Agreement
b). Patent Cooperation Treaty
c). Madrid Protocol
d). Hague Agreement

[1x20 = 20]

Part B

MCQ Questions

Answer any **15** questions

Each question carries **2** marks

23. The main objective of balancing IPR with fair competition is to: [U] / [CO5]

a). Eliminate all competition

b). Promote monopoly power

c). Protect innovation while ensuring market access

d). Prevent business expansion

24. The legal standing to sue infringers and seek damages is provided by: [U] / [CO2]

a). Branding

b). IPR protection

c). Advertising

d). Financing

25. Which of the following is not a certification trademark? [U] / [CO3]

a). ISI Mark

b). AGMARK

c). Woolmark

d). Nike

26. Which type of IPR requires inventors to disclose how their invention works? [U] / [CO1]

a). Trade secret

b). Patent

c). Trademark

d). Copyright

27. The technical details of an invention given : [U] / [CO3]

a). Abstract

b). Claims

c). Specification

d). Drawings

28. Consider the following statements Assertion (A) and Reasoning (R). Choose the correct alternative. Assertion (A): Cost approach values IP based on expected future royalty income. Reason (R): Cost approach considers the cost required to create or replace the IP. [U] / [CO4]

a). Both A and R are true, and R is the correct explanation of A.

b). Both A and R are true, but R is not the correct explanation of A.

c). A is true, but R is false. d). A is false, but R is true.

29. What is meant by passing off of trademark? [U] / [CO3]

a). Registration of a trademark b). Use of a registered trademark

c). Misrepresentation leading to deception of consumers d). Assignment of trademark rights

30. Consider the following statements: Statement (1): Non-exclusive licensing allows multiple licensees to use the same IP. Statement (2): Non-exclusive licensing prevents the licensor from using the IP. [U] / [CO4]

a). Both statements are true b). Statement (1) is true and Statement (2) is false

c). Statement (1) is false and Statement (2) is true d). Both statements are false

31. Consider the following statements and state which among the following are true regarding copyright? Statement (1): IPR contributes to enhancing brand value and strengthening customer loyalty. Statement (2): IPR discourages innovation by restricting access to knowledge and creativity. Statement (3) : IPR enables firms to maintain competitive advantage through legal protection of their creations and innovations. [U] / [CO2]

a). (1) and (3) only b). (1) only

c). (2) and (3) only d). (1) (2) and (3)

32. Consider the following statements Assertion (A)and Reasoning (R). Choose the correct alternative. Assertion (A): Registration of a copyright is mandatory to claim protection. Reason (R): Copyright protection arises automatically upon the creation of an original work. [U] / [CO3]

a). Both A and R are true, and R is the correct explanation of A. b). Both A and R are true, but R is not the correct explanation of A.

c). A is true, but R is false. d). A is false, but R is true.

33. Consider the following statements Assertion (A) and Reasoning (R). Choose the correct alternative. Assertion (A): An injunction is granted to compensate financial loss. Reason (R): Damages are awarded to compensate loss caused by infringement. [U] / [CO4]

a). Both A and R are true, and R is the correct explanation of A.

b). Both A and R are true, but R is not the correct explanation of A.

c). A is true, but R is false.

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34. Which of the following actions would most likely destroy trade secret protection? [U] / [CO3]

a). Public disclosure without confidentiality safeguards

b). Limited internal access within an organization

c). Use of encryption and access controls

d). Contractual obligations imposed on employees

35. Consider the following statements Assertion (A) and Reasoning (R). Choose the correct alternative. Assertion (A): Digital platforms reduce the need for copyright protection. Reason (R): Digital sharing makes unauthorised copying easier. [U] / [CO5]

a). Both A and R are true, and R correctly explains A.

b). Both A and R are true, but R does not explain A.

c). A is true, but R is false.

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36. The Paris Convention for the Protection of Industrial Property, signed in 1883, is primarily significant because it: [U] / [CO2, CO3]

a). Established a unified global patent office

b). Created an international framework for protection of industrial property among member states

c). Eliminated national IP laws

d). Focused exclusively on copyright protection

37. Which among the following supports a claim that reasonable steps were taken to protect confidential information? [U] / [CO3]

a). Restricting access to sensitive data on a need-to-know basis

b). Sharing information freely within the industry

c). Allowing unrestricted employee downloads

d). Relying solely on oral assurances

38. Consider the following statements Assertion (A) and Reasoning (R). Choose the correct alternative. Assertion (A): In assignment, ownership of IP is permanently [U] / [CO4]

transferred. Reason (R): Licensing only grants usage rights while ownership remains with the licensor.

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39. Which of the following statements correctly describes the term of copyright for a photograph? [U] / [CO3]

a). Copyright in a photograph subsists for a shorter period than literary works.

b). The term of copyright for photographs is 60 years from the date of publication, the same as literary works.

c). Copyright in a photograph expires immediately after publication.

d). The term of copyright for photographs is calculated from the author's death.

[2x15 = 30]

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